IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No2

CP(CAA)/58(AHM)2022
in
CA(CAA)/32(AHM)2022

Proceedings under Section 230-232 Co.Act,2013

IN THE MATTER OF:

Bhagwat Power Salaya Ltd **.....Applicant**
Essar Steel Metal Trading Ltd

.....Respondent

Order delivered on ..06/09/2022

Coram:

Dr.Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Ms. Dharmishta Raval, Adv.
For the Respondent :

ORDER

Second motion petition filed by the three petitioner companies is within time. Learned Counsel states that meetings were held, and chairperson's report was filed on 16.08.2022. The present application is e-filed on 22.08.2022. Learned Counsel further states that transferor company nos. 1, 2 and 3 have filed respective applications before the Hon'ble NCLT Mumbai Bench, and transferor company no. 4, and transferee company no. 2 is before this Bench and that all companies are public limited companies under the same management, and requests to admit the petition.

This Second motion petition filed under Section 230-232 of the Companies Act.

The Petitioner has served Notice(s) to Statutory Authorities and also filed affidavit evidencing service to concerned Authorities.

The petition is admitted.

The Petitioner shall advertise Notice of hearing of this petition in "Business Standard" Ahmedabad / Baroda, Edition and a Gujarati translation thereof in LokSatta, Ahmedabad/ Baroda Edition in vernacular language not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

The Petitioner shall issue notice(s) to following, informing the date of hearing:

1. **Regional Director and the Registrar of Companies** both situated at *RoC* Bhavan, Opp. Rupal Park Society, Behind Ankur Bus Stop, Naranapura, Ahmedabad (380013)**.**
2. **The Official Liquidator** situated at 3rd Floor, Corporate Bhawan, B/H Zydus Hospital, Thaltej, Ahmedabad-380059 Gujarat.
3. **The Income Tax Department** at respective ward officers with details of PAN of all Petitioners Companies and also Office of Principal Chief Commissioner Income Tax, at their present address.
4. **BSE Limited,** Corporate Office at Phiroze Jeejeebhoy, Towers Dalal Street, Mumbai- 400001 Registered office: Floor 25, P J Towers, Dalal Street, Mumbai 400001 (for Transferee Company).
5. **NSE Limited,** Corporate Office at National Stock Exchange of India Ltd., Exchange Plaza, C-1, Block G, Bandra Kurla Complex, Bandra (E) Mumbai – 400051.(for Transferee Company).

List for hearing on 24.11.2022.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

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